

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, August 20, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28598 against Sergeant Gonzalez, Tax Registry No. 934943. The case was conferenced on July 9, 2024, before Assistant Deputy Commissioner of Trials Anne Stone, who endorsed the negotiated penalty of a Schedule A Command Discipline for DADS No. 2023-28598 after Sgt Gonzalez accepted the finding(s) of substantiation of the allegations contained in the Charges and Specifications. CCRB recommended a forfeiture of FIVE (5) days for the Schedule A Command Discipline, but ADCT Stone stated that she may recommend a lower penalty with the endorsement. Charges and specifications will be dismissed for plea purposes.

The case was re-called and conferenced on August 6, 2024, before Assistant Deputy Commissioner of Trials Facio-Lince, who endorsed the downward departure from the NYPD Matrix and negotiated penalty of a Schedule A Command Discipline with a forfeiture of (5) days for DADS No. 2023-28598. ADCT Facio-Lince stated that she concurred with ACDT Stone in that she may recommend a lower penalty with the endorsement.

Andre Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

DISAPPROVED

SEP 23 2024

Thomas G. Donlon

THOMAS G. DONLON
INTERIM POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2023-28598

BOOK & PAGE NO.
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PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, GONZALEZ	FIRST ANTHONY	M.I.	COMMAND WARRANT SECTION
SHIELD NO. 1564	TAX REGISTRY NO. 934943	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2004	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Anthony GONZALEZ, on or about March 3, 2022, at approximately 0920, while assigned to WARRSEC and on duty, in the vicinity of 506 Bergen Street, Kings County, abused their authority as a member of the New York City Police Department, in that Sergeant GONZALEZ authorized Detective Steve Richards to unlawfully arrest § 87(2)(b)	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

DC Brubaker
FIRST DEPUTY COMMISSIONER

9/12/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☐ Approved
- ☒ Disapproved
- ☐ Other Action (Describe)

Thomas DeSoto
POLICE COMMISSIONER

9/23/24
DATE

FIFTH ENDORSEMENT

First Deputy Commissioner to Deputy Commissioner, Department Advocate, September 25, 2024. Contents noted. Please note the Police Commissioner's **DISAPPROVAL** of the Third Endorsement and **DISAPPROVAL** of the First Endorsement regarding Disciplinary Case No. 2023-28598 against Sergeant Anthony Gonzalez, Tax No. 934943.

The Police Commissioner **directs** that this matter be renegotiated and Sergeant Gonzalez be offered a dismissal of the charges and specifications and the issuance of a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days.

Forwarded for your necessary attention.



Tania I. Kinsella



FIRST DEPUTY COMMISSIONER

TIK/es

cc: Chief of Professional Standards
Deputy Commissioner of Trials